

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 25-010
Amendments to Title 2, Chapter 4 of the Chickasaw Nation Code
(Insurance for Elected Officials)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, it is desirable to make available to retired elected officials the opportunity to continue to participate in the insurance program, as it may from time to time be amended, so that such officials and their dependents may continue to have life, health and dental insurance upon retirement.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 2, Chapter 4 Article A of the Chickasaw Nation Code, all other sections and parts of the Chickasaw Nation Code to remain the same (additions are shown in red, deletions are stricken through):

“Section 2-401.1	Officers Established; Qualifications.
Section 2-401.2	Oath of Office.
Section 2-401.3	Who May Administer Oaths.
Section 2-401.4	Removal of Officers.
Section 2-401.5	Terms of Office.
Section 2-401.6	Vacancy Defined.
Section 2-401.7	Vacancies in Elected Office.
Section 2-401.8	Legal Protection for Officers and Employees of the Nation.

SECTION 2-401.9 **INSURANCE FOR ELECTED OFFICIALS WHO LEAVE OFFICE.**

A. Definitions:

1. “Insurance” shall mean life, health and dental insurance as provided by the Chickasaw Nation to its employees/elected officials under the plan in effect at the time of death or retirement of the elected official or as such plan may change throughout the remainder of the time this measure shall be applied.

2. “Retirement” shall mean leaving office, whether by design or by happenstance.

3. “Year” shall mean any portion of a year served by an elected official.

B. Death: Should an elected or retired official die, and at the time of his death he is carrying dependents on his health and dental insurance, the Nation shall pay to carry those dependents on his health and dental insurance for a period of six (6) months after his death, to give his dependents time to make arrangements for their own health and dental insurance.

C. Retirement: Upon an elected official's retirement or loss of office by other than recall petition or impeachment, he shall be entitled to continue to be eligible to receive life, health and dental insurance according to the following scale:

1. Upon leaving office and after completion of twelve (12) years in any elected office, insurance shall be a paid benefit for the official throughout the remainder of the official's lifetime. An official may reject the benefit at any time; however, once the benefit has been rejected, it shall not be recommenced.

2. Upon leaving office and after completion of nine (9) years in any elected office, insurance shall be made available as an option to the retiring official at fifty percent (50%) of the cost of such policies, as part of any benefits package that may be offered to such retired officials; however, should the costs of such policies be raised or lowered, the fifty percent (50%) share cost to the official shall be raised or lowered proportionately. An official may reject the benefit at any time; however, once the benefit has been rejected, it shall not be recommenced.

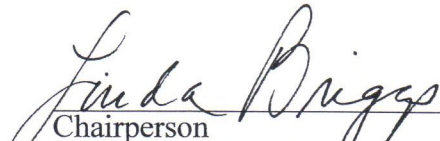
3. Upon leaving office and after completion of six (6) years in any elected office, insurance shall be made available as an option to the retiring official at seventy-five percent (75%) of the cost of such policies, as part of any benefits package that may be offered to such retired officials; however, should the costs of such policies be raised or lowered, the seventy-five percent (75%) share cost to the official shall be raised or lowered proportionately. An official may reject the benefit at any time; however, once the benefit has been rejected, it shall not be recommenced.

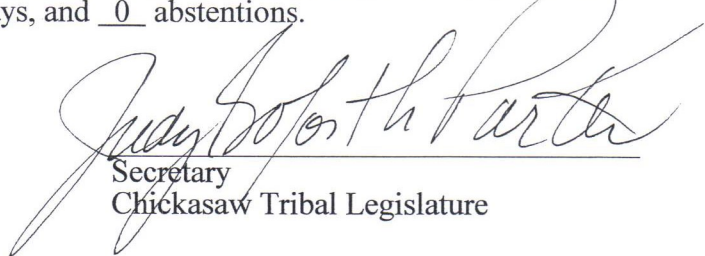
D. Effective Date; Grandfather Clause.

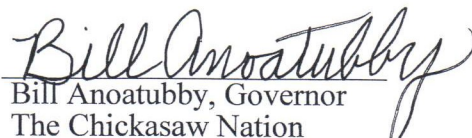
1. The Effective Date of this resolution is the first day of the month following the month it was enacted by the Legislature and concurred with by the Governor or otherwise passed into law.

2. All officials serving in any elected office on the Effective Date and all officials elected after the Effective Date shall be given credit for all years served in any elected office under the Chickasaw Constitution of 1983, even if such years were served prior to the Effective Date."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on July 18, 2008, by a vote of 9 ayes, 3 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: JUL 19 2008

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Explanation: This resolution amends Title 2, Chapter 4 of the Chickasaw Nation Code. Chapter 4 addresses general provisions for elected officials. This amendment will make insurance available to retiring elected officials on a cost basis ranging from 75% to no cost, depending upon the length of time an official served in any elected office. Insurance, defined to include life, health and dental as is available to employees and elected officials, shall become an additional retirement benefit to officials upon their retirement from office according to the scale defined in this resolution.

Presented by: Legislative Committee
Steve Woods, Committee Chair